

STATE OF MINNESOTA
COUNTY OF HENNEPIN

DISTRICT COURT
FOURTH JUDICIAL DISTRICT
Case Type: Contract

Yibiao Lu and Jie Hu,

Court File No.: 27-CV-26-11606

Plaintiff,

Judge: Jamie Anderson

vs.

Fire Insurance Exchange, by and through
its attorney-in-fact, Fire Underwriters
Association (d/b/a Farmers Insurance),

**DEFENDANT FIRE INSURANCE
EXCHANGE'S INITIAL
DISCLOSURES**

Defendant.

Pursuant to Rule 26.01 of the Minnesota Rules of Civil Procedure, Defendant Fire Insurance Exchange (FIE) makes the following initial disclosures based on information reasonably available. Defendant makes no claim that the following initial disclosure constitutes a full disclosure of all persons having knowledge or of all potentially relevant documents. Further investigation, research, and analysis may supply additional information that may lead to additions or changes to this initial disclosure. Defendant reserves the right to supplement these disclosures upon discovery of additional information or to the extent that any other party asserts, clarifies, modifies, or otherwise develops additional theories or defenses. Defendant reserves all objections to discoverability, relevance, admissibility, and all other objections available to it.

INITIAL DISCLOSURES

- (i) **The name and, if known, the address and telephone number of each individual likely to have discoverable information—along with the subjects of that information—that the disclosing party may use to support its claims or defenses, unless the use would be solely for impeachment.**

Plaintiffs Yibiao Lu and Jie Hu, have knowledge regarding the allegations in Plaintiffs' Complaint related to the August 13, 2024, hail loss claim they made alleging that their interior windows were leaking as a result of exterior hail damage which they allege occurred on July 13, 2024. They have information concerning the inspection process that took place; that Prieve Engineering inspected the loss and issued a report finding that no hail damage occurred on July 13, 2024. Plaintiffs have knowledge that they invoked the appraisal clause; selected an appraiser; and that a binding appraisal award was issued on or about September 12, 2025.

FIE Representatives and Employees, including but not limited to the following, have information concerning Plaintiffs' claim:

Nic Brau, FIE Senior Claims Adjuster, conducted an inspection of Plaintiffs' house following the loss and has knowledge regarding Plaintiffs' claim.

Christian Dudley, FIE Catastrophe Claims Representative has knowledge concerning Plaintiffs' alleged loss, FIE's inspection and findings related thereto.

Twonda Miller, FIE Senior General Claims Adjuster has knowledge, including but not limited to, that she responded to Plaintiffs' inquiry regarding prior losses at Plaintiffs' address and referred Plaintiffs to their appraiser to answer Plaintiffs' additional questions about the appraisal award.

Zorphlon Miller, FIE Senior General Claims Adjuster may have knowledge of Plaintiffs' claim and the outcome thereof.

Plaintiffs' insurance agent Peter Pietilla may have knowledge concerning Plaintiffs' claim.

Defendant's appraiser Greg Tomes has knowledge regarding the appraisal process. Mr. Tomes has knowledge that he did not sign off on the appraisal award.

Plaintiffs' appraiser John Foster has knowledge of the appraisal process and that he signed off on the appraisal award.

Appraisal umpire Wade Roos has knowledge of the appraisal process and that he signed off on the binding appraisal award.

Representatives of Hancock Claims Consultants have knowledge of the damage alleged to have been sustained to Plaintiffs' house, the inspection it performed at Plaintiffs' house, and the outcome of that inspection, which noted interior water damage around the windows in Plaintiffs' house and no other damages observed.

Representatives of Pure Construction Roofing, LLC may have knowledge of the damage alleged to have been sustained to Plaintiffs' house, the scope of repairs estimated, and the cost of those repairs.

Nathan Prieve, Prieve Engineering has knowledge of his inspection and report.

Wade Roos, Umpire, has knowledge concerning the appraisal award issued in this case.

John Foster, Plaintiffs' appraiser, has knowledge that Plaintiffs selected Foster as their appraiser; the appraisal process; and that Foster signed the binding appraisal award.

- (ii) **A copy—or a description by category and location—of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses, unless the use would be solely for impeachment.**

Defendant FIE relies on the insurance policy issued to Plaintiffs, inspection of the alleged damages and inspection photos, the Prieve Engineer Report and photos, Plaintiffs' demand for appraisal, and the binding appraisal award. Produced herewith are the following: 2024-09-03 Farmer's Letter to the Insured w/Claim Outcome and Hancock Report/Photos dated 2024-8-30 and 2024-8-31; 2024-11-04 Farmers Letter to Insured Claim Outcome with Prieve Report; Prieve Inspection Photos; 2025-08-03 Demand for Appraisal; 2025-8-13 Farmers Letter to Concise Resolutions with 365 pages of attachments for appraisal; 2025-09-16 Farmers Letter to Insured Settlement Notice and Appraisal Award; All photos related to the alleged loss including those dated 08-19-2024, 9-5-2024, 9-6-2024, 9-8-2024, 9-9-2024, 9-10-2024, and 9-6-2024 Field Inspection Photos (51 pages).

In addition to the above, FIE has in its possession the remainder of the claim file not produced herewith.

- (iii) **A computation of each category of damages claimed by the disclosing party—who must also make available for inspection and copying as under Rule 34 the documents or other evidentiary material, unless privileged or protected from disclosure, on which each computation is based, including materials bearing on the nature and extent of injuries suffered.**

Not applicable.

- (iv) **For inspection and copying as under Rule 34, any insurance agreement under which an insurance business may be liable to satisfy all or part of a possible judgment in the action or to indemnify or reimburse for payments made to satisfy the judgment.**

A certified copy of the policy (redacted) in effect on the date of loss is produced herewith.

[05490 Lu and Hu v. FIE \(0001-0842\)--Link Expires 12-11-26](#)

KENNEDY LAW FIRM P.C.

Dated: September 25, 2026

By: /s/Mary Baskfield
Kevin J. Kennedy (#193872)
Mary J. Baskfield (#0314572)
7616 Currell Blvd., Suite 270
Woodbury, MN 55125
Telephone: 651-256-5000
Em: kkennedy@kennedylf.com
Em: mbaskfield@kennedylf.com
Counsel for Defendant